

U.P. Power Corporation Ltd. v. Chairman, Permanent Lok Adalat, Bareilly

Allahabad High Court · Single Judge · 7 November 2019; 18 November 2019; 10 January 2020 · Writ-C No. 35914 of 2019 · Writ-C No. 35914 of 2019 · **No interim interference with the Permanent Lok Adalat order; notice issued; later passed over.**

HEADNOTE

U.P. Power Corporation Ltd. challenged a Permanent Lok Adalat, Bareilly order in a transformer-shifting dispute. The High Court found no ground to interfere at the interim stage, issued notice to the consumer, and later passed the writ over for non-appearance. The U.P. Electricity Supply Code 2005 shifting procedure was not construed.

FACTUAL SUMMARY

U.P. Power Corporation Ltd. challenged a Permanent Lok Adalat, Bareilly order dated 22 August 2019 in PLA Case No. 24 of 2019 (Smt. Begum Sajida Haq versus UPPCL), relating to shifting of transformers under the U.P. Electricity Supply Code 2005. Counsel first sought time to study the Code procedure. On 18 November 2019 the Court found no ground for interim interference, issued notice to Begum Sajida Haq, and listed the matter for January 2020. On 10 January 2020 none appeared for the petitioners and the case was passed over.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim non-interference with Permanent Lok Adalat order

HOLDING

On a writ by U.P. Power Corporation Ltd. challenging a Permanent Lok Adalat, Bareilly order in a transformer-shifting dispute, the High Court found no good ground to interfere at the interim stage, issued notice to the consumer, and directed listing. On a later date none appeared for the petitioners and the matter was passed over. The Supply Code procedure for shifting transformers was not construed. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PERMANENT LOK ADALAT ORDER AND THE U.P. ELECTRICITY SUPPLY CODE 2005 PROCEDURE FOR SHIFTING TRANSFORMERS

Writ remains pending; the Court only declined interim interference and later passed the matter over for non-appearance. ¶ 1-3